

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: July 20, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

2	Benson v. Lemonade, Inc. 2025-01491797 Motion to be relieved as counsel of record	MOTION NO. 1: The motion of attorneys Michelle M. Meyers, Lisa J. Nicholes, and Jordan A. Goulet from Singleton Schreiber, LLP to be relieved as counsel of record for plaintiff Alexander Benson is GRANTED. Moving attorneys have shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorneys are ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order. MOTION NO. 2: The motion of attorneys Michelle M. Meyers, Lisa J. Nicholes, and Jordan A. Goulet from Singleton Schreiber, LLP to be relieved as counsel of record for plaintiff Cortney Benson is GRANTED
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4	Atalla v. Kaiser Foundation Health Plan, Inc. 2024-01377905 Motion to Compel Arbitration	Defendants Stanley T. Lau, M.D., Alysia Lu Tran, M.D., and Kyu Jin Oh, M.D.'s unopposed petition to compel arbitration is GRANTED. Defendants Stanley T. Lau, M.D., Alysia Lu Tran, M.D., and Kyu Jin Oh, M.D. seek an order compelling Plaintiff to arbitrate her claims against Defendants and move to stay the action pending completion of arbitration and determination of this motion. Defendants contend Plaintiff's claims are subject to arbitration pursuant to a Group Agreement and Evidence of Coverage between Kaiser Foundation Health Plan, Inc. and the Board of the California Public Employees Retirement System through which Plaintiff was enrolled as a health plan member and received the medical care at issue. The Federal Arbitration Act (FAA) authorizes enforcement of arbitration causes unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) Similarly, under the California Arbitration Act (CAA), a party to an arbitration may move to compel arbitration if the other contractual party refuses to arbitrate. (Code Civ. Proc., § 1281.2.) "[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable." (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 (Rosenthal)). "[T]he petitioner bears the burden of proving its existence by a preponderance of the evidence" and the party opposing the petition bears the burden of proving by a preponderance of the evidence of any fact necessary to any defenses raised. (<i>Ibid.</i>) Defendants seek to compel arbitration both under the CAA as well as the FAA as they contend the arbitration agreement affects interstate commerce. Kaiser Foundation Health Plan, Inc. (Health Plan) entered into a Group Agreement and Evidence of Coverage (Agreement/EOC) with the Board of the California Public Employees Retirement System (CalPERS) effective 1/1/21 through which Health Plan offered to arrange certain medical and hospital services for individuals eligible for CalPERS health benefits. (Adkins Decl., ¶ 2, Ex. A; Kohls Decl., ¶ 2.) Health Plan contracts with Southern California Permanente Medical Group (SCPMG) to provide medical services to Health Plan members. (Everett Decl., ¶ 1.) Veronica Atalla (Atalla), Plaintiff's mother, initially enrolled as a Health Plan member
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	under the Agreement/EOC in 2015. (Adkins Decl., ¶ 4, Ex. C.) Atalla signed a Newborn enrollment form to enroll Plaintiff as a Health Plan member on 10/7/17. (Adkins Decl., ¶ 5, Ex. D.) Plaintiff was therefore enrolled as a CalPERS basic plan member under the Agreement/EOC effective 11/1/17 and remained enrolled through 1/1/22. (Adkins Decl., ¶ 4, Ex. C.) The section entitled "Binding Arbitration" in the 2021 Agreement/EOC provides, in part: For all claims subject to this "Binding Arbitration" section, both Claimants and Respondents give up the right to a jury or court trial and accept the use of binding arbitration. . . . Scope of arbitration Any dispute shall be submitted to binding arbitration if all of the following requirements are met: • The claim arises from or is related to an alleged violation of any duty incident to or arising out of or relating to this EOC or a Member Party's relationship to Kaiser Foundation Health Plan, Inc. ("Health Plan"), including any claim for medical or hospital malpractice (a claim that medical services or items were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered), for premises liability, or relating to the coverage for, or delivery of, services or items, irrespective of the legal theories upon which the claim is asserted • The claim is asserted by one or more Member Parties against one or more Kaiser Permanente Parties or by one or more Kaiser Permanente Parties against one or more Member Parties • Governing law does not prevent the use of binding arbitration to resolve the claim . . . As referred to in this "Binding Arbitration" section, "Member Parties" include: • A Member • A Member's heir, relative, or personal representative • Any person claiming that a duty to him or her arises from a Member's relationship to one or more Kaiser Permanente Parties "Kaiser Permanente Parties" include: • Kaiser Foundation Health Plan, Inc. • Kaiser Foundation Hospitals . . . • Southern California Permanente Medical Group . . . • Any Southern California Permanente Medical Group or The Permanente Medical Group physician. "Claimant" refers to a Member Party or a Kaiser Permanente Party who asserts a claim as described above. "Respondent: refers to a Member Party or a Kaiser Permanente Party against whom a claim is asserted. (Adkins Decl., ¶ 2, Ex. A, pp. 76-77.) Defendants contend Lau, Tran, and Oh are medical doctors and partners of SCPMG, providing medical services to Health Plan members. The Agreement/EOC further states: EOC Binding on Members By electing coverage or accepting benefits under this EOC, all Members legally capable of contracting, and the legal representatives of all Members incapable of contracting,
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	agree to all provisions of this EOC. (Adkins Decl., ¶ 2, Ex. A, p. 85.) Health Plan and CalPERS entered into agreements containing a similar provision for binding arbitration every year since the 1970s. (Kohls Decl., ¶ 4.) The Newborn information enrollment form signed by Plaintiff on 10/7/17 provides: Kaiser Foundation Health Plan Arbitration Agreement I understand that (except for Small Claims Court cases, claims subject to a Medicare appeals procedure, and, if I am enrolled in coverage that is subject to the ERISA claims procedure regulation, or any claims that cannot be subject to binding arbitration under governing law) any dispute between myself, my heirs, relatives, or other associated parties on the one hand and Kaiser Foundation Health Plan, Inc. (KFHP), any contracted health care providers, administrators, or other associated parties on the other hand, for alleged violation of any duty arising out of or related to membership in KFHP, including any claim for medical or hospital malpractice (a claim that medical services were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered), for premises liability, or relating to the coverage for, or delivery of, services or items, irrespective of legal theory, must be decided by binding arbitration under California law and not by lawsuit or resort to court process, except as applicable law provides for judicial review of arbitration proceedings. I agree to give up our right to a jury trial and accept the use of binding arbitration. I understand that the full arbitration provision is contained in the Evidence of Coverage. (Adkins Decl., ¶ 5, Ex. D.) Whether an agreement to arbitrate exists When a party petitions the court to compel arbitration, it “must allege the existence of an agreement to arbitrate the its enforceability are proven by affidavits or declarations.” (<i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218 [citation omitted].) The relevant provisions of the arbitration agreement must be set forth verbatim in the petition to compel or a copy of the agreement must be attached to the petition and incorporated by reference. (<i>Ibid.</i> [citing Cal. Rules of Court, rule 371 [now rule 3.1330].) “If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.”(<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 165, [disagreed with by <i>Ramirez v. Golden Queen Mining Co., LLC</i> (2024) 102 Cal.App.5th 821, on a different point.]) Here, Defendants attached a copy of the 2021 Agreement/ EOC as Exhibit A to the Adkins Declaration. The Agreement/EOC provides: “For all claims
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	subject to this 'Binding Arbitration' section, both Claimants and Respondents give up the right to a jury or court trial and accept the use of binding arbitration. . . ." Agreements containing a similar arbitration provision were entered into in 2015 and 2017, when Atalla and Plaintiff enrolled, respectively. (Adkins Decl., ¶¶ 4-5, Exs. C, D; Kohls Decl., ¶ 4.) The Agreement/EOC states: "By electing coverage or accepting benefits under this EOC, all Members legally capable of contracting, and the legal representatives of all Members incapable of contracting, agree to all provisions of this EOC." (Adkins Decl., ¶ 2, Ex. A, p. 85.) As stated above, Atalla enrolled as a Health Plan member under the Agreement/EOC in 2015 and enrolled Plaintiff in 2017. (Adkins Decl., ¶¶ 4-5, Exs. C, D.) Additionally, Atalla signed a Newborn information enrollment form on 10/7/17 which provided, in part: "I understand that . . . any dispute between myself, my heirs, relatives, or other associated parties on the one hand and Kaiser Foundation Health Plan, Inc. (KFHP), any contracted health care providers, administrators, or other associated parties on the other hand, for alleged violation of any duty arising out of or related to membership in KFHP, including any claim for medical or hospital malpractice (a claim that medical services were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered) . . . must be decided by binding arbitration under California law I agree to give up our right to a jury trial and accept the use of binding arbitration. I understand that the full arbitration provision is contained in the Evidence of Coverage." (Adkins Decl., ¶ 5, Ex. D.) "Minors are bound by a parent's agreement to arbitrate medical malpractice claims filed against a healthcare provider." (<i>County of Contra Costa v. Kaiser Foundation Health Plan, Inc.</i> (1996) 47 Cal.App.4th 237, 242-243 [citations omitted].) Given the above and no opposition from Plaintiff disputing the existence of an arbitration agreement, the Court finds an agreement to arbitrate exists. Whether the Agreement/EOC covers Plaintiff's claims The Agreement/EOC provides that disputes will be arbitrated if "[t]he claim arises from or is related to an alleged violation of any duty incident to or arising out of or relating to this EOC or a Member Party's relationship to Kaiser Foundation Health Plan, Inc. ('Health Plan'), including any claim for medical or hospital malpractice (a claim that medical services or items were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered). . . ." and "[t]he claim is asserted by one or more Member Parties against one or more Kaiser
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		Permanente Parties,” which includes any SCPMG physician. (Adkins Decl., ¶ 2, Ex. A, p. 77.) Similarly, the provision in the Newborn information enrollment form provides that “any claim for medical or hospital malpractice” must be decided by binding arbitration. (Adkins Decl., ¶ 5, Ex. D.) This language covers Plaintiff’s claims which relate to the medical care she received. The party opposing arbitration “bears the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint.” (Howard v. Goldbloom (2018) 30 Cal.App.5th 659, 663.) The Court finds the Agreement/EOC covers Plaintiff’s claims. Enforceability of the Agreement/EOC As stated above, once the court determines whether an agreement exists, it must then determine whether it is enforceable if any defense to its enforcement is raised. (Rosenthal, supra, 14 Cal.4th at p. 413.) Plaintiff has not opposed the motion and has therefore not raised any defenses as to enforceability. Accordingly, the Court GRANTS Defendants Stanley T. Lau, M.D., Alysia Lu Tran, M.D., and Kyu Jin Oh, M.D.’s petition to compel arbitration. The Court STAYS the action against Defendants Stanley T. Lau, M.D., Alysia Lu Tran, M.D., and Kyu Jin Oh, M.D. pending the completion of arbitration. The Court SETS an ADR Review Hearing re: Status of Arbitration for 3/15/27 at 8:30 a.m. in Department C15.
5	Jacobson v. Davidson 2026-01543879 Motion to Compel Arbitration	The Motion to Compel Arbitration by Defendants Keith Davidson, Stewart Albertson, and Albertson & Davidson, LLP is GRANTED. This action arises from the attorney Defendants’ representation of Plaintiff in underlying trust/inheritance proceedings. (Complaint, ¶¶ 1-8.) Plaintiff alleges Defendants failed to provide the funds Plaintiff is entitled to because Defendants (1) applied improper/inconsistent fees and failed to account for his funds, and (2) Defendants claim they issued checks which Plaintiff never received or cashed. Plaintiff seeks damages in excess of \$615,000 and an accounting of his funds. <u>Legal Standard:</u> “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the

	respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists," except under certain situations outlined by statute. (Code Civ. Proc. § 1281.2.) There is a public policy in favor of arbitration under federal and state law." (<i>McManus v. CIBC World Markets Corp.</i> (2003) 109 Cal.App.4th 76, 85.) "Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration." (<i>United Transportation Union v. S. Cal. Rapid Transit Dist.</i> (1992) 7 Cal. App. 4th 804, 808.) Accordingly, "[t]he court should order the[] [parties] to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute." (<i>Id.</i>) "[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration." (<i>Green Tree Fin. Corp.-Alabama v. Randolph</i> (2000) 531 U.S. 79, 91.) "General principles of contract law determine whether the parties have entered a binding agreement to arbitrate." (<i>Pinnacle Museum Tower Assn. v. Pinnacle Mkt. Dev. (US), LLC</i> (2012) 55 Cal. 4th 223, 236.) "The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (<i>Id.</i>) <u>Application:</u> Defendants move to compel arbitration based on the parties' Contingency Fee Agreement which stated in part, "Any dispute, claim or controversy arising out of or relating to this Agreement shall be determined by arbitration..." (Davidson Decl., Ex. A.) The Agreement broadly defines such claims to include, "the construction, application or performance of any obligations and services including claims of malpractice; and, the breach, termination, enforcement, interpretation or validity, including the determination of the scope of applicability, of this Agreement to arbitrate." (Davidson Ex. A, ¶ 10(a).) However, the Agreement further specifies that any "dispute over attorney fees" shall be subject to non-binding arbitration pursuant to California Business and Professions Code section 6200 et seq. ("Mandatory Fee Arbitration Act"). Here, Defendant asserts that Plaintiff's claims are subject to binding arbitration under the Agreement.
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		Plaintiff has not filed a timely opposition to the motion. However, on 7/13/26, Plaintiff filed a declaration describing the basis for his claims and asserting that his claims in this lawsuit “are not about disputing attorney fees” but rather the wrongful retention of funds, misrepresentation of payments, and failure to account for funds held in trust. It is not clear whether Plaintiff’s declaration is intended to oppose arbitration. Based on the allegations of the complaint and the declarations of Plaintiff and Defendants, this action falls within the binding arbitration clause of the attorney-client agreement. Therefore, the action is stayed and the parties are ordered to attend arbitration consistent with the Agreement. On July 20, 2026, the Court will discuss setting a review hearing and advancing the CMC set for 8/10/26, to a new date.
6	Sui v. Kexin USA, Inc. 2025-01452561 Motion to Compel Answers to Form Interrogatories Motion to Compel Further production	Motions 1-3: Motions to Compel Responses Plaintiff Honsong Sui’s Motion to Compel Responses to Form Interrogatories-Employment (Set One); Motion to Compel Responses to Form Interrogatories-General (Set One); and Motion to Compel Responses to Request For Production of Documents (Set One) are DENIED, in part, and GRANTED, in part. Plaintiff moves for an order compelling defendant Kexin USA, Inc. to serve responses to Plaintiff’s Form Interrogatories-Employment (Set One), Form Interrogatories-General (Set One), and Request For Production of Documents (Set One) (collectively, “Written Discovery”); and for an award of monetary sanctions against Defendant. As an initial matter, the Court finds Plaintiff properly served defendant Kexin USA, Inc. with the Written Discovery via substituted service. (See Code Civ. Proc., § 415.20, subd. (a).) 4 After the motions were filed, Defendant served verified responses to the Written Discovery on 8/11/25. Thus, the motions are moot as to the responses. Nevertheless, Plaintiff is entitled to sanctions concerning the instant motions. Defendant has not established substantial justification for opposing the motion. Plaintiff seeks monetary sanctions for each motion in the amount of \$3,322.50 (4.5 hours at \$750/hour, plus \$60 filing fee), totaling \$9,967.50 for all three motions. The Court finds this amount to be

	unreasonable. Thus, the request for sanctions is granted in the reduced amount of \$2,430.00 for all three motions. Based on the foregoing, the motions are DENIED as moot, in part, regarding the responses and GRANTED, in part, regarding sanctions. Defendant is ordered to pay Plaintiff sanctions in the amount of \$2,430.00 within 10 days. Clerk to give notice. Motion 4 Plaintiff Honsong Sui's Motion to Compel Further Responses to Request For Production of Documents (Set One) is CONTINUED to a date to be selected by the Court and parties on July 20, 2026. Plaintiff moves for an order compelling defendant Kexin USA, Inc. to serve further responses to Plaintiff's Request For Production of Documents (Set One) and for an award of monetary sanctions against Defendant. The parties/counsel have not engaged in sufficient attempts to meet and confer. (See Code Civ. Proc., § 2016.040; <i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing].) Here, Defendant served unverified responses on 6/20/25. Plaintiff sent a meet and confer letter on 7/2/25 before filing the motion on 7/15/25. Plaintiff sent another meet and confer letter on 8/8/25 and Defendant served verified responses on 8/11/25. Although this motion has been pending for a year, there is no indication that the parties have met and conferred further on the verified responses. 5 The parties/counsel are ORDERED to engage in additional attempts to meet and confer in person, telephonically, or over remote videoconferences (not email). If Defendant agrees to serve further responses, Defendant shall serve verified further responses no later than nine court days before the hearing. The parties/counsel are ORDERED to file a JOINT STATUS REPORT, indicating whether court intervention remains the only option to resolve this discovery dispute and, if so, which responses remain at issue, no later than five court days before the hearing. The parties are strongly encouraged to resolve this dispute cooperatively if possible. Failure to comply with this order may result in sanctions against the
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		non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5. Clerk to give notice.
7	BANDLA V. DUVVURO, et al 2025-01535774 Motion to be relieved as counsel	The motion of attorney Uri Litvak to withdraw as attorney of record for Plaintiff Sai Bandla is DENIED as moot. On July 8, 2026 Litvak was substituted out as counsel of record, thus, counsel's motion to be relieved is no longer at issue. (ROA 71.)